

One-way NDA

A one-way NDA when one business is sharing protected information.

EFFECTIVE DATE

DISCLOSING PARTY LEGAL NAME

RECEIVING PARTY LEGAL NAME

GOVERNING STATE OR JURISDICTION

- Purpose**

The disclosing party may provide non-public information so the receiving party can evaluate or perform the business purpose agreed by the parties.
- Protected information**

Protected information includes non-public commercial, technical, financial, customer, product, security, and operational information, including notes or analyses derived from it.
- Recipient duties**

The receiving party will use protected information only for the purpose, safeguard it with reasonable care, and share it only with representatives who need it and owe confidentiality duties.
- Standard exclusions**

The duties do not cover information documented as previously known without restriction, public without breach, lawfully received from another source, or independently developed without using protected information.
- Compelled disclosure**

If disclosure is legally required, the receiving party will provide notice when permitted and disclose only what is legally required.
- Return and duration**

On request, protected materials will be returned or destroyed, except for lawful archival copies. Confidentiality duties continue for three years, and trade-secret duties continue while protected by law.
- Ownership**

All protected information remains the disclosing party's property. No license, warranty, partnership, or obligation to complete a transaction is created.

SIGNATURES

DISCLOSING PARTY

RECEIVING PARTY

Signature

Signature

Date

Date